

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	25-07-2026 15:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	25-07-2026 15:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Steel
विभाग का नाम/Department Name	Steel Authority Of India Limited
संगठन का नाम/Organisation Name	Bokaro Steel Plant
कार्यालय का नाम/Office Name	Bslp61
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :harsh.nigam@sail.in Buyer Email id: buyer72.sail.bokaro@gembuyer.in
कुल मात्रा/Total Quantity	14000
वस्तु श्रेणी /Item Category	HIGH SILICA SAND
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	HIGH SILICA SAND
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	High Silica Sand for use in Foundries (V2) Conforming to IS 1987, High End Desktop Computer, Silica Crucibles, Silica Cloth, Revolving Chair (V5), Filter Sand, Low Silica Limestone, LED Luminaire for High Bay Lighting, Silica Fume (ONGC), Silica Gel Breather (V2)
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- Filter Sand - High Silica Sand for use in Foundries (V2) Conforming to IS 1987 - Low Silica Limestone
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC),Additional Doc 1 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	5
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
क्रेता के लिए उपलब्ध आईटीसी/ITC available to buyer	Yes
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	4 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईएमडी राशि/EMD Amount	500000

ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने हैं। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b).ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c).ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

BOKARO STEEL PLANT

MM-PURCHASE, ADM BUILDING, BOKARO STEEL PLANT, B S CITY, JHARKHAND -827001

(Sail / Bokaro Steel Plant)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15

सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25
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ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Preference to Make In India products (For bids < 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

If the buyer has mentioned MSE purchase preference in ATC then service provider is required to upload necessary documents for MSE purchase preference for verification by the buyer during evaluation.

HIGH SILICA SAND (14000 metric tonne)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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इनपुट कर क्रेडिट(आईटीसी) तथा रिवर्स प्रभार (आरसीएम)/Input Tax Credit(ITC) and Reverse Charge(RCM) Details

जीएसटी पर इनपुट कर क्रेडिट /ITC on GST	जीएसटी उपकर कर क्रेडिट /ITC on GST Cess
100%	NA

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajkaran Singh	827001,DGM(Stores), Stores Department, Steel Gate, Gate No.-9, Bokaro Steel Plant, Bokaro Steel City-827001, Jharkhand	14000	365

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2. Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3. Generic

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- Copy of PAN Card.

- b. Copy of GSTIN.
- c. Copy of Cancelled Cheque.
- d. Copy of EFT Mandate duly certified by Bank.

4. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

ADDITIONAL TERMS AND CONDITIONS

Specification (High Silica Sand - BSL CS Code: 10110400040030)

Chemical Specification:

SiO₂: 96% (Min)

Moisture: 3% (Max)

Physical Specification (Grain Fineness):

% retained on 600, 425, and 300 Micron sieves: 70% (MIN)

A. IMPORTANT NOTE :

a) **Evaluation and Price Breakup:** Evaluation of the bid shall be on the basis of total all inclusive, landed price at consignee Destination. Successful bidder shall have to provide complete breakup of Basic Price, Royalty, Freight and Unloading Charges as applicable.

b) **Earnest Money Deposit (EMD)** – Rs 5,00,000/- (Five Lakh Only) has to be submitted in line with the instructions of the RFQ. Any bid not accompanied by an acceptable EMD or a valid proof of exemption (as detailed in ATC below) shall be treated as non-responsive and summarily rejected at the technical evaluation stage without any further reference to the bidder.

c) Verification of credentials:

i. SAIL reserves the right to verify any supporting document (s) submitted by the participating tenderer/ Bidder from its source (document issuing authority).

ii. In the interest of expeditious completion of verification, the participating tenderer/ Bidder shall provide a list of each supporting document on its letter-head as per "ANNEXURE-S" along with the contact detail, postal address, email address, landline, mobile number on the issuing authority of each supporting document for verification.

iii. Non-verification of any supporting document or information, at the sole discretion of SAIL does not absolve the tenderer/ Bidder of its absolute responsibility to provide only genuine document(s) in support of eligibility conditions.

iv. In case a supporting document or information is found to be fake/ forged/ tampered/ non genuine/ at any stage during tendering process and even after placement of purchase order/ work order the tenderer is liable for punitive action as per extend guideline of SAIL.

d) **Adverse Report :** In case any specific adverse report is received against a tenderer, as an information or upon enquiry made by SAIL, in respect of capabilities and performance of the tenderer, after receipt of tender (even after opening of price bid), the quotation/ tender submitted by such tenderer is liable to be rejected.

e) The Vendors are required to submit following duly filled & signed formats along with techno-commercial eligibility documents :

- i. Format for Acceptance of General Terms & Conditions
- ii. Undertaking by Bidder
- iii. Make in India Declaration (As per Government Guidelines)
- iv. Basic information about the vendor
- v. Affidavit (Annexure-A, Annexure B & Annexure C) –Duly Notarized affidavit on non-judicial stamp paper of Rs. 100/-
- vi. Worksheet for Eligibility Criteria
- vii. Earnest Money Deposit / Valid exemption document
- viii. Annexure S (Verification of Credentials)

B. Eligibility Criteria - High Silica Sand

(*Similar material refers to "SiO₂ -95% min and clay -2% Max)

1) Intending tenderers shall have requisite experience of supplying similar material of specification as per present tender to any of the Steel Plant/Govt. Organization/PSU/Public Limited Company in any One of the last 07 years. Copy of Purchase Order(s) and corresponding proof of supply in support shall be furnished along with the techno- commercial bid.

2) Average annual production/dispatch of similar material of specification as per present tender of the tenderer during the last 03 years, ending 31st March of the previous financial year shall be at least **7,000 MT** (50 % of the requirement of the present tender rounded off upwards to the nearest thousand Tons). Copy of Purchase Order(s) and corresponding proof of supply in support to be furnished for the last 03 years along with the techno-commercial bid in support of the same.

3) Tenderer shall have supplied minimum **2,100 MT** (15% of tendered quantity) of similar material of specification as per present tender in any one year during the last 07 years to any of the Steel Plant/Govt. Organization/PSU/Public Limited Company. Copy of Purchase Orders and corresponding proof of supply in support shall be furnished along with the techno- commercial bid.

4) The tenderer is required to submit self-attested photocopies of documents in support of their eligibility and experience along-with the techno-commercial bid. In addition, bidder shall submit an affidavit in specified formats (Annexure A - declaring that the documents submitted by them are genuine & Annexure B - that they are having a valid mining lease).

5) BSL reserves the right to call for original documents for verification at any time during tendering, evaluation and/or the execution of the contract. In case of any documents/information submitted by bidder(s) found to be false or containing any misrepresentation of having any fraudulent declaration in it, then in such eventuality, legal action (including cancellation of contract, banning of business dealing, damages, criminal proceedings etc.) as deemed fit may be initiated by BSL against the bidder.

6) For purpose of bidding for the tendered material , BSL/SAIL will be considering only those suppliers who have a valid mining lease in their name for the tendered material or power of attorney in their name , from a mine lease owner authorizing the bidder to mine / supply from his mine . In case the mine owner is a proprietor of company they have to submit Proprietorship affidavit and in case mine owner is a partner of a company , a Partnership Deed has to be submitted" These documents should be submitted along with the techno commercial bid. The bidders are also required to submit an affidavit (Annexure-'C') for no dues certificate with respect to royalty and other statutory payment till 31 st march of last financial year. These documents should be submitted along with the techno commercial bid.

C. Earnest Money Deposit (EMD) – Rs 5,00,000/- (Five Lakh Only)

Tenderer shall submit EMD in form of Bank Guarantee (BG) / Demand Draft/ Banker's Cheque/ Online transfer or Fixed Deposit Receipt (FDR), from any Scheduled Commercial Bank [List as per Annexure I] except Co-operative and Gramin Bank ,as per format in ATC document .

(Online Transfer through SBI collect – Sbi Collect/ Industry / Jharkhand / Steel Authority Of India Ltd)

Any bid not accompanied by an acceptable EMD or a valid proof of exemption shall be treated as non-responsive and summarily rejected at the technical evaluation stage without any further reference to the bidder.

Validity: Unless otherwise specified, EMD should be valid till 6 months from bid submission date and should be suitably extended by the tenderer as and when a request to do so is made.

Submission of EMD : Tenderers are required to upload the Scanned copy of EMD or the valid document(s) for EMD exemption EMD and submit Physical copy of same in a sealed cover directly to SAIL/BOKARO STEEL PLANT within five (05) working days of Tender opening Date, failing which the bid may be treated as incomplete & may lead to rejection of the bid without making any reference to the tenderer.

The EMD Bid should be put in an envelope and sealed, clearly super scribing, GeM Bid Number, Earnest Money Deposit (EMD) for River Sand, due date of Submission, due date of opening and the Name & Address of the Tenderer.

Address for submission of EMD:

Saurabh Soreng
Senior Manager – (MM-Purchase)
Room No B332, Third Floor, Adm Building
Bokaro Steel Plant, Bokaro Steel City
Jharkhand – 827001

The name/address of the Bidder should be mentioned on all envelopes for clear and easy identification.

BSL's Banker details are as below:
STATE BANK OF INDIA
STEEL AUTHORITY OF INDIA LIMITED
BRANCH : BOKARO STEEL CITY (00246)
IFSC: SBIN0000246

Exemption:

EMD exemption shall be applicable for eligible tenderer fulfilling anyone of the following terms & conditions. Tenderer claiming EMD exemptions needs to upload all relevant documents for EMD exemption claim with their Techno-commercial offer on GeM portal along with Bid Securing Declaration and submit hard copy of the same in sealed envelope directly to SAIL/BSL within five (05) working days of Tender opening Date, failing which the bid may be treated as incomplete & may lead to rejection of the bid without making any reference to the tenderer

i. Micro and Small Enterprises (MSEs) who are holding valid Udyam Registration and are manufacturer of the relevant product as per GeM bid and give specific confirmation to this effect at the time of bid submission and claim EMD exemption and whose credentials are validated online through Udyam Registration website of Ministry of MSME and also through supporting document uploaded during bidding process.

ii. Start-ups as recognized by Department for Promotion of Industry and Internal Trade (DPIIT), holding valid Startup Recognition Certificate which is to be uploaded while bidding and claiming EMD exemption and to be validated by the Buyer. Bidder to ensure that turnover for any of the financial years has not exceeded beyond limits prescribed in the certificate / Start Up scheme of DPIIT.

iii. Tenderer who have got their credentials verified through the process of GeM Vendor Assessment by Vendor Assessment Agencies. Tenderer needs to submit self -attested valid GeM Vendor Assessment Report or GeM Vendor Assessment Exemption Report.

iv. Tenderer holding BIS License for the Tendered Item whose credentials can be validated through BIS database and through uploaded supporting documents.

v. Central / State PSUs.

Forfeiture of EMD: The EMD shall be forfeited:

i. Tenderer withdraws or modifies its Bid/Offer on its own during the period of Bid/Offer validity specified by the Tenderer.

ii. In the case of a successful Tenderer fails to accept/honor the Notification of Award/ Letter of Acceptance (LOA) in accordance or to furnish Security Deposit/ Bank guarantee in accordance with Tender terms.

iii. In case of any documents/ information submitted by the bidder(s) found to be false or containing misrepresentation or having any fraudulent declaration in it.

iv. Equivalent amount of EMD shall be recovered from EMD exempted vendors, for the reasons mentioned above, including from any available/due amount of vendors in SAIL Plants/Units.

No change in the attached prescribed proforma for Earnest Money is acceptable. No interest shall be payable on EMD by SAIL plants. No request for adjustment of earlier dues in place of EMD requirement shall be entertained.

Special Terms and conditions

1) Price:

i) The Basic Price shall remain FIRM during the Contract Period. Statutory levies on the date of dispatch shall be applicable.

ii) Escalation/de-escalation shall be applicable on the following statutory levies:

a) Royalty

b) Cess

c) GST: The Seller shall reimburse the Purchaser any reduction subsequently received by the Seller due to any

iii) Any variation in these statutory duties/Govt. Levies or imposition for any fresh statutory/Govt. levies shall be borne by SAIL on actual basis during the tenure of the contract.

2) Delivery:

i. Delivery shall commence within one month from the PO placement date or as directed by SAIL BSL and shall continue throughout the PO's validity period.

ii. Material is to be dispatched by Road only after clearance from Raw material department.

iii. The seller shall be responsible for the timely delivering of the material.

iv. Delivery shall be made as per the program given by SAIL/BSL Plant.

3) Sampling & Analysis Clause:

Sampling and analysis will be conducted by SAIL, Bokaro Steel Plant, at the destination. Samples shall be drawn in the presence of personnel from the R&C Lab, the Raw Material Department, and the supplier's authorized Representative, if desired.

During Sample Collection, sieve analysis will be performed to access the sieve distribution as per the material physical specification.

Umpire samples will be retained by RMD for retesting in case of any dispute. All drawn samples shall be signed by the aforementioned personnel.

The collected sample will be used for chemical analysis in the laboratory as per the material's specification.

There will be no re-sampling. In case the supplier disputes the results of analysis, re-testing will be limited to chemical analysis of Umpire Sample only.

One Sample will be drawn per day per supplier. All the trucks received in a day per supplier will be treated as one consignment for sampling and analysis. In case of consignment which will not be sampled and analyzed at destination, the payment will be made on the basis of average destination analysis of the purchaser during the month.

In case of any dispute, the umpire sample shall be analyzed at any SAIL Plant lab, RDCIS, or any NABL-accredited laboratory. The charges for such analysis from NABL accredited laboratory other than SAIL units shall be borne by the seller. Retention of Umpire Sample: The "Umpire Sample" shall be retained for a period of 30 days from the date of release of analysis report to the supplier. However, in case of adverse variation in quality reported after analysis and subsequently disputed by the supplier within stipulated timeframe of 30 days, the "Umpire Sample" shall be retained till the settlement of dispute.

The analysis report from the Umpire Analyst shall be final and binding on both the seller and the buyer (BSL).

The seller shall be provided the material analysis report for each consignment within 30 days of receipt of the material if not the material shall be deemed fit.

If after sampling & analysis at the destination, test results of 3 samples out of the last 4 consecutive samples of supplies are found to be off the PO specification, then the purchaser reserves the right to suspend, divert, or cancel the part or entire ordered quantity.

4) Transportation & Unloading:

Material shall be supplied in trucks in a loose condition using properly covered supplier transport. Transportation guidelines must be followed.

Unloading at purchaser's site is to be arranged by the supplier. Material shall be unloaded inside plant premises. Unloading charges will be borne by the supplier.

5) Weighment:

All trucks shall be weighed at the weighbridges of SAIL, Bokaro Steel Plant and after unloading of the material the empty truck shall be weighed again, for determining the actual weight of material delivered for the purpose of payment. Due to unavoidable circumstances, if trucks are not weighed at BSL weighbridge on any day, then average weighment of weighed trucks in that particular month will be taken for calculating weighment of un-weighed trucks.

6) Payment:

Paying Authority: DGM (Accounts-Raw Materials & freight), Finance & Account Department, SAIL, Bokaro St

eel Plant.

Payment terms: 100% payment will be made within 30(thirty) days from the date of satisfactory receipt of invoice at SAIL/Bokaro Steel Plant.

The bills are to be submitted along with the following documents:

- i. Tax invoice duly receipted by consignee.
- ii. SAIL, Bokaro Steel Plant's weighment report at destination for Road,
- iii. SAIL RCL/BSL analysis report for quality of material
- iv. SAIL Bokaro Steel Plant's GRN.
- v. Supplier's Guarantee certificates to the effect that the material dispatched are according to the ordered specification.
- vi. GST declaration
- vii. Royalty, Other statutory levies and Taxes declaration.

Note: All bills duly pre-receipted and completed in all respects should be submitted in quadruplicate (4 copies) Order no. & date, Tax invoice no. & date, Truck no. Etc. should be invariably mentioned in all the bills.

Tax invoice: Tax invoice should be sent to the consignee with every truck and shall be duly receipted by the consignee.

Monthly Statement: Supplier should send a monthly statement giving details of supplies to SAIL, Bokaro Steel City by third day of every succeeding month.

7) **GRN:**

For Trucks GRN should be on the basis of plant weight or Tax invoice, whichever weight is lower.

8) Penalty Tolerance and Rejection Clause:

Penalty /Tolerance: High Silica Sand

A) Chemical: SiO₂

1) No Penalty: For SiO₂ $\geq$ 96%

2) With Penalty:

95 $\leq$ SiO₂ < 96% with 2% of basic for every 0.1 % variation

Moisture > 3% accordingly the weight will be deducted at the time of payment

3) Rejection: Either For SiO₂ < 95% or Clay > 2%

B) Size Fractions:

1) No Penalty:

% retained on 600, 425, and 300 Micron sieves $\geq$ 70%

2) With Penalty:

65% $\leq$ % retained on 600, 425, and 300 < 70% No payment will be made for that fraction

2) Rejection:

% retained on 600, 425, and 300 Micron sieves < 65%

Rejected material shall not be returned to the supplier. However, Royalty, taxes, duties (if applicable), freight and unloading charges shall be reimbursed as per actual to the supplier.

9) **Liquidated Damages:**

Liquidated Damages, not by way of penalty, @ 0.5% per week or part thereof subject to maximum of 10%, on the basic price of the materials (excluding Royalty, taxes, duties and freight) shall become recoverable and recovered from the supplier

LD Applicability :YES

LD Period Steps :Weekly

LD Period Percentage :0.5 % LD Ceiling :10%

10) **Risk Purchase:**

Should the seller fail to deliver the materials or any consignments thereof, within the period prescribed for such delivery, the Purchaser shall be entitled at his option to cancel the contract, either fully or partially, at the risk and cost of the Seller. ii. In the event of the Purchaser terminating the contract in whole or in part as mentioned above, the material may be procured on such terms and in such manner as deemed appropriate and the Seller shall be liable to the Purchaser for any excess costs for such supplies. However, in case of part termination of the contract by Purchaser, the Seller shall continue to perform the contract to the extent it is not terminated under the provision of this clause. iii. If the Seller fails to supply materials as per the delivery schedule, resulting in diversion of supplies, risk purchase action shall be levied on the defaulting Seller, to the extent of the quantity not supplied and additional freight incurred thereon, if any.

11) Force Majeure:

a) If, at any time, during the currency of this Contract, the performance in whole or in part, by either party, or any obligation under this Contract, is prevented or delayed by reason(s) of war, hostility, acts of public enemy, civil commotion, sabotage, fires, floods explosions, epidemic, quarantine restrictions, Acts of State or other Acts of God, hereinafter referred to as eventualities, then, provided notice of the happenings of any such eventuality is given by either party to the other, within 15 days from the date of occurrence thereof, neither party shall by reason of such eventuality be entitled to terminate this Contract, nor shall either party have any claim for damages against the other, in respect of such non-performance or delay in performance and work under this Contract shall resume as soon as practicable but within 15 days after such eventuality has come to an end or ceased to exist and the decision of the Company as to whether the work has to be resumed shall be final and conclusive.

b) The Notice of declaration of Force Majeure must be supported by the Certificate of relevant Railway / Port Authority/Chamber of Commerce/Government or Quasi Government body. If the said certificate is not available, the Affected Party must provide a certificate signed by the Affected Party's Company Secretary and one of the Directors on the Board of the Affected Company. In addition, the Affected Party shall also intimate the cessation of such Force Majeure. The said intimation of cessation of Force Majeure shall be accompanied by a certificate, from the authorities as stated hereinabove.

c) In case one or both parties are prevented from fulfilling their contractual obligations by state of Force Majeure lasting continuously for a period of three months, the parties may consult each other regarding further continuation of the Contract.

12) CONCILIATION:

In the event of any conflict or dispute arising out of or in connection with the Contract, the Parties shall endeavor to settle such disputes amicably. If a dispute is not resolved within 30 (thirty) days after a written notice of any dispute by one Party to the other, the same shall then be resolved through the mechanism of Conciliation through Dispute Resolution Committee which shall comprise representatives/nominee of:

a. Buyer: wherein the nominee of the buyer shall be an officer other than the officer who handled the Contract. The said nominee shall be nominated by the Head of the concerned department.

b. Supplier/ Service Provider.

The said Conciliation shall be chaired by the Nominee of the Buyer.

If the Dispute Resolution Committee is not able to resolve the matter within 30(thirty) days of its formation, the Conciliation shall be deemed to have failed. It is further provided that Arbitration shall only be resorted to after the failure of Conciliation. The venue of the Conciliation shall be the concerned Plant/Unit of the Buyer organization.

If the Supplier/Service Provider is MSME registered party, then conciliation shall be held as per the provisions of the MSME Act if the MSME firm does not choose to abide by the process given herein above

13) ARBITRATION:

a) For Domestic Contracts(where Supplier/Service Provider is an Indian Party):

In the event of any dispute arising out of or in connection with the Contract in question, which has not been resolved through Conciliation in accordance with the procedure laid down in Clause above, the aggrieved Party may invoke Arbitration by sending a written notice to the other Party.

The procedure for appointment of the Arbitral Tribunal shall be as follows.

i. In cases where the total value of the Contract is less than or upto INR 1, 00, 00,000/- (Indian Rupees One Crore only) the same shall be referred to a Sole Arbitrator to be mutually appointed by both the Parties.

ii. Where the total value of the Contract exceeds INR 1,00,00,000/- (Indian Rupees One Crore only), the arbitration shall be conducted by a quorum of three arbitrators. Each party shall nominate an arbitrator and the two party-appointed arbitrators shall within 30 (thirty) days from their nomination, nominate a third arbitrator i.e., the Presiding Arbitrator.

iii. In case of failure to nominate the Presiding Arbitrator within a period of 30 (thirty) days from the date of nomination of the two arbitrators who has been nominated later in time by the respective parties, the aggrieved party shall approach the High Court (under whose jurisdiction the principal place of business of the Buyer department/ organization is located) to appoint the Presiding Arbitrator as per the provisions of the Arbitration and Conciliation Act, 1996 (as amended up to date).

iv. The arbitration shall be conducted in the English language. Arbitration proceedings can also be conducted online, as per the discretion of the Arbitral Tribunal.

v. The cost of the Arbitration shall be equally borne by both the Parties.

vi. The arbitration shall be governed by the Arbitration and Conciliation Act, 1996, as amended from time to time. The seat of arbitration shall be at the place where the concerned Plant/Unit of the Buyer department / organization is located.

vii. The Contract shall be interpreted and governed in all respects in accordance with the laws of India. All disputes in connection with or arising out of the Contract, shall be subject to the exclusive jurisdiction of the

e Court within the local limits of whose jurisdiction concerned Plant/Unit of the Buyer Department/Organization is located.

viii. Where the arbitral award is for the payment of money, no interest shall be payable on whole or any part of the money for any period till the date on which the award is made.

ix. The Courts at the location of concerned plant/unit of the buyer organization shall have exclusive jurisdiction in relation to any dispute arising out of such Contracts.

If the Supplier/Service Provider is MSME registered party, then Arbitration shall be held as per the provisions of the MSME Act if the MSME firm does not choose to abide by the process given herein above.

b) International Contracts (where Supplier/Service Provider is a foreign party):

i. For such Contracts, where the dispute has not been resolved through Conciliation in accordance with the procedure laid down in Clause of SAIL-P1, the aggrieved Party may invoke Arbitration as per the procedure laid down in rules of International Chamber of Commerce (ICC) and the rules of ICC shall apply in relation to such Arbitration. ii. The seat and venue of such Arbitrations shall be New Delhi and the Arbitration shall be governed by the Laws of India. The language of the Arbitration shall be English. iii. The Courts at New Delhi shall have the exclusive jurisdiction in relation to disputes arising out of such Contracts.

23.1 Settlement of Disputes other than taxation between SAIL and another Central Public Sector Enterprise (CPSE) or SAIL and Govt Department(s)/Organization(s) including State Government shall be as per the prevailing guidelines of Government of India. In event of any dispute or difference in interpretation and application of the provisions of commercial contract(s) between CPSE/ Port trusts inter se and also between CPSEs and Government Departments/ Organizations (excluding disputes relating to Railways, Income Tax, Customs & Excise Departments), such disputes or difference shall be taken up by either party for its resolution through AMRCD as mentioned in DPE OM No. 05/0003/2019-fts-10937 dated 14th December 2022 and decision of AMRCD on the said dispute will be binding on both the parties."

14) Governing Law:

This Contract shall be governed and shall be interpreted under laws of India. All suits and legal proceedings by or against steel plant in any matter arising out of the contract shall be tried only by the appropriate civil court at the place where the steel plant is located.

15) Condition of Contract:

The contract shall be governed (except to the extent of any modifications made herein) by the general conditions of contract as per the "Conditions of contract governing supply contracts (SAIL-P/1) Steel Authority of India Limited". The decision of SAIL with regard to any other matter not provided herein shall be final. If at any time any discrepancy is found; SAIL reserve the right to suitably amend the same.

16) SDBG:

Within 21 (twenty one) days from the date of Placement of Order, the successful Bidder should furnish Security Deposit in the form of a bank guarantee as per proforma, for an amount covering 5% (five percent) of the Basic Value (excluding taxes, duties and freight) of the contract.

In case the supplier delays submission of Security Deposit / Performance Guarantee, a penalty of 0.2% of the original SD / PG amount per completed day of delay, limited to an amount not exceeding 5% of the original SD / PG amount shall be applicable.

No change in the prescribed proforma of the bank guarantee for Security Deposit is acceptable. The SDBG should be established in favour of respective SAIL Plant through any scheduled Bank except Co-operative and Gramin Bank and should be received in the office of the Purchase Manager of the respective Steel Plant who has issued the purchase order within 21 (twenty one) days of the date of Placement of order. The Stamp Paper shall be purchased in the name of the concerned Bank and stamp paper shall be of Rs.100/- denomination

ii. The SDBG shall be kept valid and in full force and effect till a period of three months from the date of delivery of the last consignment of the Purchase order. However the seller shall release the SDBG on application after the seller has discharge all his obligations under this contract. The SDBG shall be operable at the local Branches of issuing Bank located at respective steel plant.

iii. Suppliers shall have the option to permit respective steel plant to retain an amount equivalent to SDBG amount from their initial bills in lieu of submission of SDBG.

17) Payment of Royalty and other Govt levies and taxes:

The responsibility will entirely rest with the seller for depositing Royalty and other Govt levies and taxes to the concerned Govt. Authority and also, in case of any dispute, if raised by concerned Govt. Authority, regarding non-deposit of royalty and other statutory levies and taxes.

18) Quantity Variation:

SAIL/Bokaro Steel Plant reserves the right to vary the ordered quantity by (+/-)25%. The increased quantity

y should be of the same specification and to be supplied at the same price, terms and conditions, after completion of the original ordered quantity. Bidders are bound to accept the orders accordingly.

19) Regulation of Supply:

The delivery schedule will be regulated by Raw Material department of Bokaro Steel Plant.

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5. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of

this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---